

## **TENTATIVE RULINGS**

### **DEPARTMENT N17**

**Judge Craig L. Griffin**

**Date: September 28, 2026**

**Time: 2:00 PM**

If you are submitting to the tentative, please call the Clerk at (657) 622-5617.

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| # | Case Name                                                        | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|---|------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | Lanting v. Jaguar Land Rover North America, LLC                  | Cont. to 11/30                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2 | Kwok v. Genera Corporation                                       | Cont. to 11/23                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 3 | Heroa v. FCA US LLC                                              | O/C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 4 | Central City Community Health Center, Inc. v. W&P Pharmacy, Inc. | <p>Before the Court an application for a right to attach order and order for issuance of writ of attachment filed by plaintiff (Plaintiff) Central City Community Health Center, Inc. against defendant W &amp; P Pharmacy, Inc. (Defendant). For the reasons set forth below, the application is <b>GRANTED</b> in the amount of \$593,612.60, conditioned on Plaintiff posting an undertaking in the amount of \$10,000 within 20 days.</p> <p>Based on the pleadings and affidavits filed in support of the motions, the Court finds that (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) Plaintiff has established the probable validity of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is</p> |

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|   |                                       | <p>based; and (4) the amount to be secured by the attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a); § 483.010, subds. (a)-(c); see also Compl. ¶¶ 8-22; Reyes Decl. ¶¶ 3-18, Ex. 1; Boufadel Decl. ¶¶ 3-5.) Plaintiff has complied with service requirements but has not shown proof of an undertaking. (Code of Civ. Proc. § 484.040, § 486.080, § 489.010, § 489.220, subd. (a); see also ROA 13, 22.) The amount to be secured by the attachment includes the estimated amount for costs and attorney fees. (Code of Civ. Proc. § 482.015, § 482.110, subd. (b); Boufadel Decl. ¶ 7.)</p> <p>Counsel for Plaintiff shall provide notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 5 | Contreras v. Kirkwood Orange MSL, LLC | <p>The motion to compel arbitration filed by defendants Kirkwood Orange MSL LLC; MSL Community Management LLC; and MBK Senior Living LLC (collectively, Moving Defendants) is <b>DENIED</b>.</p> <p>Moving Defendants seek to compel the claims of plaintiffs Elva Contreras, by and through her Personal Representative, Cathy Bustos; Cathy Bustos, individually; and Patricia Herrera, individually (collectively, Plaintiffs) to arbitration pursuant to the Federal Arbitration Act (FAA, 9 U.S.C. § 1, et seq.).</p> <p>Under the FAA, the moving party on a motion to compel arbitration must demonstrate the existence of an arbitration agreement between the parties that covers the controversy or claims at issue. (Roes v. SFBSC Management, LLC (9th Cir. 2016) 656 Fed.Appx. 828, 829; Knutson v. Sirius XM Radio Inc. (9th Cir. 2014) 771 F.3d 559, 565.) In determining the validity or “the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) Indeed, this federal policy in favor of arbitration “does not come into play... until a court has found the parties entered into a valid contract under state law.” (Metters v. Ralphs Grocery Co. (2008) 161 Cal.App.4th 696, 701.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra, 55 Cal.4th at 236.)</p> <p>Moving Defendants seek to compel arbitration based on the “Assisted Living Residence and Services Agreement” and “Arbitration Agreement” executed on May 30, 2024. These agreements were executed on behalf of resident, Elva Contreras, by her daughter and representative, Cathy Bustos. (See Exhibits A and B to Soriano Decl.) Moving Defendants contend Ms. Bustos signed these agreements on behalf of Ms. Contreras pursuant to a Durable Power of Attorney executed by Ms. Contreras on September 22, 2023, appointing Ms. Bustos as her attorney-in-fact. (See Exhibit C to Soriano Decl.)</p> <p>The Durable Power of Attorney provides that it becomes effective only upon Ms. Contreras’ incapacity as proved by either (1) a</p> |

declaration of a court of competent jurisdiction or (2) the written statement of a licensed physician which states that, in the opinion of such physician, Ms. Contreras lacks sufficient mental, emotional or physical ability to adequately or properly manage or care for her property. (Soriano Decl., Ex. C, §§3.5, 3.6.)

Moving Defendants failed to establish that either of these conditions was satisfied. Moving Defendants offered no court declaration and no physician's written statement. Moving Defendants' argument in the Reply that the conditions of sections 3.5 and 3.6 were "substantially satisfied" because the totality of the evidence establishes Ms. Contreras' incapacity at the time of execution is insufficient to show the condition precedent was met. Here, the Durable Power of Attorney expressly delineates two methods by which Ms. Contreras' incapacity may be proven and Moving Defendants failed to establish that either of these two methods were met. "When construing a power of attorney, a court must consider the language of the document and give meaning to its terms." (Gordon v. Atria Management Co., LLC (2021) 70 Cal.App.5th 1020, 1026; see also, Young v. Horizon West, Inc. (2013) 220 Cal.App.4th 1122, 1128 [evidence of plaintiff's incapacity "does not substitute for satisfaction of the condition stated in the terms of plaintiff's advanced health care directive."].)

Moving Defendants argue in the Reply that Plaintiffs failed to provide any evidence to support their assertion Ms. Contreras was not incapacitated so as to effectuate the Durable Power of Attorney. However, Plaintiffs did not argue that Ms. Contreras was not incapacitated. They argued Moving Defendants failed to meet their burden of establishing a written agreement to arbitrate was formed because Moving Defendants failed to show the Durable Power of Attorney, which they rely on to establish Ms. Bustos' authority to bind Ms. Contreras, was effective upon execution of the Arbitration Agreement. It is Moving Defendants' burden to establish the existence of an agreement to arbitrate between the parties. Given Moving

Defendants failed to show the conditions in sections 3.5 and 3.6 of the Durable Power of Attorney were met, Moving Defendants failed to establish Ms. Bustos had authority to bind Ms. Contreras to the Arbitration Agreement. Moving Defendants thus failed to meet their burden.

Additionally, Moving Defendants do not argue Ms. Bustos was the ostensible agent of Ms. Contreras, nor is there any evidence presented to support such a theory. "Ostensible agency cannot be established by the representations or conduct of the purported agent; the statements or acts of the principal must be such as to cause the belief the agency exists." (Valentine v. Plum Healthcare Group, LLC (2019) 37 Cal.App.5th 1076, 1087.) No evidence is presented of any words or conduct by Ms. Contreras conferring authority on Ms. Bustos.

Further, even if the instrument took effect, because the Durable Power of Attorney is a financial power of attorney under Division 4.5

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|   |                       | <p>of the Probate Code, it does not appear to authorize health care decisions, such as admission to a residential care facility, and thus the admissions agreement and arbitration agreement executed with it would appear to be void. (See <i>Hutcheson v. Eskaton Fountainwood Lodge</i> (2017) 17 Cal.App.5th 937, 941.)</p> <p>Based on the foregoing, the Court finds Moving Defendants failed to establish the existence of an arbitration agreement between the parties.</p> <p>Accordingly, the motion is <b>DENIED</b>.</p> <p>Moving Defendants are to file a responsive pleading within 15 days.</p> <p>Counsel for Plaintiffs shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 6 | Kashani v. Huntington | <p>Before the Court are three motions filed by defendant Richard Huntington (Defendant) as to the complaint of plaintiff Farnaz Rahimi Kashani (Plaintiff): 1) special motion to strike pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP motion); 2) demurrer; and 3) motion to strike portions of the complaint. For the reasons set forth below, the anti-SLAPP motion is <b>DENIED</b>.</p> <p>As for the demurrer and motion to strike, there is a pending probate case which may resolve some or all of the matters addressed in the Complaint. Accordingly, the Court <b>STAYS</b> the current civil action until the probate case is fully resolved. The hearing on the Demurrer and Motion to Strike are therefore <b>Off-Calendar</b>.</p> <p><b><u>Anti-SLAPP Motion</u></b></p> <p>In ruling on a special motion to strike under Section 425.16, the court must follow a two-step process. (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. (<i>Ibid.</i>) If the moving party makes the showing required in the first step, the court then determines whether the non-moving party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.)</p> <p>Defendant contends the entire complaint arises from the protected activity of taking actions under court order appointing a fiduciary, citing <i>Seeman v. Mosier</i> (2026) 118 Cal.App.5th 460, 469-470.) <i>Seeman v. Mosier</i> is inapposite. There, the court determined the claims against the court-appointed receiver arose out of conduct under the catchall provision in Section 426.16(e)(4). The court reasoned the receiver's conduct and decisions as a court-appointed receiver were in furtherance of the exercise of a constitutional right of petition – the criminal prosecution of the plaintiff in “one of the largest workers compensation insurance fraud cases in California,” which “certainly raises public issues or is a matter of public interest that could affect large numbers of people beyond the direct participants.” (<i>Id.</i> at pp. 470-471.) The court noted the defendant's</p> |

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|   |                                           | <p>"role as receiver and his exercise of control over millions of dollars in assets bore a functional relationship to that prosecution and its effect on the public." (<i>Id.</i> at 471.)</p> <p>By contrast, in this case, Defendant produced evidence the probate court appointed him as trustee of the 2014 Mehdi Rahimi Kashani Fard Trust dated November 20, 2014, as amended and restated on March 12, 2018 (the "Trust"), but it only involved matters in the underlying probate dispute between the siblings. (RJN, Exs. B, C.) The alleged conduct affects the direct participants, but is not a matter of public interest or raise public issues. Defendant failed to meet his initial burden the complaint or any of the causes of action therein, arise out of protected activity. The burden never shifts to Plaintiff to show probability of prevailing on the merits. The anti-SLAPP motion is therefore <b>DENIED</b>.</p> <p>A conference re the status of the pending probate case is set for April 16, 2027, at 9:30 a.m. in Dept. N17.</p> <p>Counsel for Plaintiff shall give notice of these rulings.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 7 | Choe v. General Motors, LLC               | Cont. to 11/30                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 8 | Tarakji v. Secure One Capital Corporation | Cont. to 11/23                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 9 | Christopher Bui v. Ben Elliot et al       | <p>Before the Court at present are the following four motions:</p> <p>(1) the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially &amp; Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Quintessentially UK Defendants") ("<b>Motion 1</b>" below);</p> <p>(2) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant Ira Michael Birns ("Birns") ("<b>Motion 2</b>" below);</p> <p>(3) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant WFS UK Holding Partnership LP ("WFS") ("<b>Motion 3</b>" below); and</p> |

(4) the Motion to Quash Summons for Lack of Personal Jurisdiction and Improper Service, filed on 6/10/26 by Specially Appearing Defendant Ramsey Mankarious ("Mankarious") ("**Motion 4**" below).

**Motion 1: The "Motion to Dismiss" is GRANTED.**

The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].)

When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991-992.) Plaintiff has not met that burden here.

In the unverified First Amended Complaint filed on 8/25/25 ("FAC"), Plaintiff asserts multiple claims based on an alleged employment relationship with 27 individuals and entities, referred to collectively as the "Defendants." Plaintiff alleges at ¶ 5 and in footnote 1 that he was, at some unspecified time, employed by "the QUINTESSENTIALLY EMPLOYERS and the QUINTESSENTIALLY EMPLOYER AGENTS," and that various entity defendants are alter-egos of Quintessentially (UK) Limited. He then asserts vaguely at ¶ 63 that he "was never notified of any termination of his employment" but at an unspecified time, " was retaliatorily terminated from his employment without his knowledge." None of those unverified assertions are sufficient to meet Plaintiff's burden here.

Plaintiff's declaration filed with the Opposition (at ROA 73) fails to meet Plaintiff's burden here. Among other things, it fails to state who hired him when, what his job was, how long he worked for what entity(ies), or how he was allegedly terminated and by whom. He offers no documentation to support his claims. He asserts that he was employed by "Quintessentially (UK) Limited" in Los Angeles, but offers no context for that assertion and no supporting evidence. He asserts that he was paid through various entities but "the source of the funds was always nominally from a Quintessentially bank account," without presenting any foundation for those assertions or supporting evidence.

Plaintiff's additional evidence, presented in ROAs 108, 110, and 160 do not cure these defects. None of the evidence presented shows that Plaintiff was actually employed by any of the UK Defendants. At most, the additional evidence presented reflects communications with individuals who were employed by Quintessentially, concerning what appear to have been separate businesses operated by Plaintiff and/or third parties.

Plaintiff has thus failed to meet his burden here.

In contrast, the Quintessentially UK Defendants have presented substantial evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, Goss, Simpson and Ellis Decls., at ROAs 31, 79, 135, 137 and 139.) They have also presented evidence to show that the communications presented by Plaintiff to support his claims do not actually support the assertions he has made as to each. (See ROAs 135, 137, 139.)

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Quintessentially UK Defendants. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to the Quintessentially UK Defendants. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. The Quintessentially UK Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice presented by both sides (ROAs 31, 69, 79 and 86) are **GRANTED** under Ev. Code §452(d) as to the existence of the records, to the extent relevant here, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Plaintiff's Evidentiary Objections, filed as ROAs 156-158, are **OVERRULED**.

**Motions 2 and 3: Both Motions to Quash are GRANTED.**

For both Motions, Plaintiff has failed to show any basis for personal jurisdiction as to these Defendants. Plaintiff has not presented any evidence to show general jurisdiction over either Birns, who resides in Florida, or WFS, a limited partnership organized under the laws of the United Kingdom, with its principal place of business in London, England. (ROAs 39, 47.) Plaintiff's claims as to each are instead derivative of his claims against the Quintessentially UK Defendants. Plaintiff has therefore also failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1.

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to these Defendants. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to either of them. That request is therefore **DENIED**.

The Motions are therefore **GRANTED**. Defendants Birns and WFS are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice filed as ROAs 48, 50, 124 and 130 are **GRANTED** under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

The Evidentiary Objections filed as ROA 148 are **SUSTAINED** on Obj. 4 as to the legal conclusion asserted therein, but otherwise **OVERRULED**. The Evidentiary Objections filed as ROA 149 are **SUSTAINED** on Obj. 3 [legal conclusion] but otherwise **OVERRULED**.

**Motion 4: The Motion to Quash is GRANTED.**

Plaintiff has failed to show any basis for personal jurisdiction as to this Defendant. Plaintiff has not presented any evidence to show general jurisdiction over Mankarious, who resides in London, England. (ROA 66.) Plaintiff's claim as to Mankarious is instead entirely derivative of his claims against the Quintessentially UK Defendants. Plaintiff has therefore failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1. Plaintiff has also failed to show that service for this action on Mankarious was validly effectuated, and effectively concedes that it was not.

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to this Defendant. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to Mankarious. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. Defendant Mankarious is dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

Counsel for the Quintessentially UK Defendants is to give notice of these rulings.

10 Michael Bui v. Ben Elliot, et al.

Before the Court at present are the following four motions:  
(1) the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Quintessentially UK Defendants") ("**Motion 1**" below);  
(2) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant Ira Michael Birns ("Birns") ("**Motion 2**" below);  
(3) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant WFS UK Holding Partnership LP ("WFS") ("**Motion 3**" below); and  
(4) the Motion to Quash Summons for Lack of Personal Jurisdiction and Improper Service, filed on 6/10/26 by Specially Appearing Defendant Ramsey Mankarious ("Mankarious") ("**Motion 4**" below).

**Motion 1: The "Motion to Dismiss" is GRANTED.**

The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].)

When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991-992.) Plaintiff has not met that burden here.

In the unverified First Amended Complaint filed on 8/25/25 ("FAC"), Plaintiff asserts multiple claims based on an alleged employment

relationship with 27 individuals and entities, referred to collectively as the "Defendants." Plaintiff alleges at ¶¶ 5 and 20 -35, and in footnote 1, that he was, at some unspecified time, employed by "the QUINTESSENTIALLY EMPLOYERS and the QUINTESSENTIALLY EMPLOYER AGENTS," and that various entity defendants are alter-egos of Quintessentially (UK) Limited. He then asserts vaguely at ¶ 63 that he "was never notified of any termination of his employment" but at an unspecified time, " was retaliatorily terminated from his employment without his knowledge." None of those unverified assertions are sufficient to meet Plaintiff's burden here.

Plaintiff's declaration filed with the Opposition (at ROA 76) fails to meet Plaintiff's burden here. Among other things, it fails to state who hired him when, what his job was, how long he worked for what entity(ies), or how he was allegedly terminated and by whom. He offers no documentation to support his claims. He asserts that he was employed by "Quintessentially (UK) Limited" in Los Angeles, but offers no context for that assertion and no supporting evidence. He asserts that he was paid through various entities but "the source of the funds was always nominally from a Quintessentially bank account," without presenting any foundation for those assertions or supporting evidence.

Plaintiff's additional evidence, presented in ROAs 115 and 165, does not cure these defects. None of the evidence presented shows that Plaintiff was actually employed by any of the UK Defendants. At most, the additional evidence presented reflects communications with individuals who were employed by Quintessentially, concerning what appear to have been separate businesses operated by Plaintiff and/or third parties.

Plaintiff has thus failed to meet his burden here.

In contrast, the Quintessentially UK Defendants have presented substantial evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, Goss, Simpson and Ellis Decls., at ROAs 36, 140, 142, and 144.) They have also presented evidence to show that the communications presented by Plaintiff to support his claims do not actually support the assertions he has made as to each. (See ROAs 140, 142, 144.)

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Quintessentially UK Defendants. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to the Quintessentially UK Defendants. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. The Quintessentially UK Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice presented by both sides (ROAs 36, 74, 82, and 88) are **GRANTED** under Ev. Code §452(d) as to the existence of the records, to the extent relevant here, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

The Quintessentially UK Defendants' Evidentiary Objections, filed as ROA 84, are **OVERRULED**. Plaintiff's Evidentiary Objections, filed as ROAs 161-163, are **OVERRULED**.

**Motions 2 and 3:** Both Motions to Quash are **GRANTED**.

For both Motions, Plaintiff has failed to show any basis for personal jurisdiction as to these Defendants. Plaintiff has not presented any evidence to show general jurisdiction over either Birns, who resides in Florida, or WFS, a limited partnership organized under the laws of the United Kingdom, with its principal place of business in London, England. (ROAs 44, 52.) Plaintiff's claims as to each are instead derivative of his claims against the Quintessentially UK Defendants. Plaintiff has therefore also failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1.

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to these Defendants. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to either of them. That request is therefore **DENIED**.

The Motions are therefore **GRANTED**. Defendants Birns and WFS are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice filed as ROAs 48, 50, 124 and 130 are **GRANTED** under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

The Evidentiary Objections filed as ROA 148 are **SUSTAINED** on Obj. 4 as to the legal conclusion asserted therein, but otherwise **OVERRULED**. The Evidentiary Objections filed as ROA 149 are **SUSTAINED** on Obj. 3 [legal conclusion] but otherwise **OVERRULED**.

**Motion 4:** The Motion to Quash is **GRANTED**.

|    |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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|    |                    | <p>Plaintiff has failed to show any basis for personal jurisdiction as to this Defendant. Plaintiff has not presented any evidence to show general jurisdiction over Mankarious, who resides in London, England. (ROA 68.) Plaintiff's claim as to Mankarious is instead entirely derivative of his claims against the Quintessentially UK Defendants. Plaintiff has therefore failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1. Plaintiff has also failed to show that service for this action on Mankarious was validly effectuated, and effectively concedes that it was not.</p> <p>Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to this Defendant. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to Mankarious. That request is therefore <b>DENIED</b>.</p> <p>The Motion is therefore <b>GRANTED</b>. Defendant Mankarious is dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).</p> <p>The Request for Judicial Notice filed as ROA 128 is <b>GRANTED</b> as to the existence of the record but not as to the truth of any disputed facts asserted therein, under Ev. Code §452(d). (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.)</p> <p>Counsel for the Quintessentially UK Defendants is to give notice of these rulings.</p> |
| 11 | Au v. Elliot et al | <p>Before the Court at present are the following four motions:</p> <p>(1) the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially &amp; Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Quintessentially UK Defendants") ("<b>Motion 1</b>" below);</p> <p>(2) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant Ira Michael Birns ("Birns") ("<b>Motion 2</b>" below);</p>                                                                                                                                                                                                                                                                                          |

(3) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant WFS UK Holding Partnership LP ("WFS") ("**Motion 3**" below); and  
(4) the Motion to Quash Summons for Lack of Personal Jurisdiction and Improper Service, filed on 6/10/26 by Specially Appearing Defendant Ramsey Mankarious ("Mankarious") ("**Motion 4**" below).

**Motion 1: The "Motion to Dismiss" is GRANTED.**

The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].)

When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991-992.) Plaintiff has not met that burden here.

In the unverified First Amended Complaint filed on 8/25/25 ("FAC"), Plaintiff asserts multiple claims based on an alleged employment relationship with 27 individuals and entities, referred to collectively as the "Defendants." Plaintiff alleges at ¶¶ 5 and 20 -35, and in footnote 1, that she was, at some unspecified time, employed by "the QUINTESSENTIALLY EMPLOYERS and the QUINTESSENTIALLY EMPLOYER AGENTS," and that various entity defendants are alter-egos of Quintessentially (UK) Limited. She then asserts vaguely at ¶ 63 that she "was never notified of any termination of her employment" but at an unspecified time " was retaliatorily terminated from her employment without her knowledge." None of those unverified assertions are sufficient to meet Plaintiff's burden here.

Plaintiff's declaration filed with the Opposition (at ROA 76) fails to meet Plaintiff's burden here. Among other things, it fails to state who hired her when, what her job was, how long she worked for what entity(ies), or how she was allegedly terminated and by whom. She offers no documentation to support her claims. She asserts that she was employed by "Quintessentially (UK) Limited" in Los Angeles, but offers no context for that assertion and no supporting evidence. She asserts that she was paid through various entities but "the source of the funds was always nominally from a

Quintessentially bank account,” without presenting any foundation for those assertions or supporting evidence.

Plaintiff’s additional evidence, presented in ROAs 112 and 160, does not cure these defects. None of the evidence presented shows that Plaintiff was actually employed by any of the UK Defendants. At most, the additional evidence presented reflects communications with individuals who were employed by Quintessentially, concerning what appear to have been separate businesses operated by Plaintiff and/or third parties. Plaintiff has thus failed to meet her burden here.

In contrast, the Quintessentially UK Defendants have presented substantial evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, Goss, Simpson and Ellis Decls., at ROAs 31 and 137-139.) They have also presented evidence to show that the communications presented by Plaintiff to support her claims do not actually support the assertions she has made as to each. (See ROAs 137-139.)

Plaintiff asserts that she should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Quintessentially UK Defendants. But Plaintiff has failed to identify specific areas of inquiry she would pursue, whether any discovery efforts have been made to date, or what facts she might obtain through discovery that would support specific jurisdiction as to the Quintessentially UK Defendants. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. The Quintessentially UK Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice presented by both sides (ROAs 31, 70, 78, and 84) are **GRANTED** under Ev. Code §452(d) as to the existence of the records, to the extent relevant here, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

The Quintessentially UK Defendants’ Evidentiary Objections, filed as ROA 80, are **OVERRULED**. Plaintiff’s Evidentiary Objections, filed as ROAs 156-158, are **OVERRULED**.

**Motions 2 and 3:** Both Motions to Quash are **GRANTED**.

For both Motions, Plaintiff has failed to show any basis for personal jurisdiction as to these Defendants. Plaintiff has not presented any evidence to show general jurisdiction over either Birns, who resides in Florida, or WFS, a limited partnership organized under the laws of the United Kingdom, with its principal place of business in London, England. (ROAs 44, 52.) Plaintiff’s claims as to each are instead derivative of her claims against the Quintessentially UK Defendants.

Plaintiff has therefore also failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1.

Plaintiff asserts that she should be allowed to conduct discovery to seek facts to support personal jurisdiction as to these Defendants. But Plaintiff has failed to identify specific areas of inquiry she would pursue, whether any discovery efforts have been made to date, or what facts she might obtain through discovery that would support specific jurisdiction as to either of them. That request is therefore **DENIED**.

The Motions are therefore **GRANTED**. Defendants Birns and WFS are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice filed as ROAs 39, 45, and 127 and 129 are **GRANTED** under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

The Evidentiary Objections filed as ROA 145 are **SUSTAINED** on Obj. 4 as to the legal conclusion asserted therein, but otherwise **OVERRULED**. The Evidentiary Objections filed as ROA 146 are **SUSTAINED** on Obj. 3 [legal conclusion] but otherwise **OVERRULED**.

**Motion 4: The Motion to Quash is GRANTED.**

Plaintiff has failed to show any basis for personal jurisdiction as to this Defendant. Plaintiff has not presented any evidence to show general jurisdiction over Mankarious, who resides in London, England. (ROA 64.) Plaintiff's claims as to Mankarious are instead entirely derivative of her claims against the Quintessentially UK Defendants. Plaintiff has therefore failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1. Plaintiff has also failed to show that service for this action on Mankarious was validly effectuated, and effectively concedes that it was not.

Plaintiff asserts that she should be allowed to conduct discovery to seek facts to support personal jurisdiction as to this Defendant. But Plaintiff has failed to identify specific areas of inquiry she would pursue, whether any discovery efforts have been made to date, or what facts she might obtain through discovery that would support specific jurisdiction as to Mankarious. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. Defendant Mankarious is dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Request for Judicial Notice filed as ROA 121 is **GRANTED** as to the existence of the record but not as to the truth of any disputed

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|    |                                      | <p>facts asserted therein, under Ev. Code §452(d). (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.)</p> <p>Counsel for the Quintessentially UK Defendants is to give notice of these rulings.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 12 | Catanzarite v. City of Newport Beach | <p>Before the Court are the following three demurrers directed to the First Amended Verified Petition and Complaint (FAP) of Petitioners/Plaintiffs Kenneth J. Catanzarite and Kim E. Catanzarite (collectively, Petitioners): (1) Demurrer of Respondents/Defendants, California Department of Alcoholic Beverage Control, Armando Gonzalez, and Jennifer Delarosa (collectively, the State Defendants); (2) Demurrer of Respondents/Defendants, City of Newport Beach, City of Newport Beach Code Enforcement, and John Murray (collectively, the City); and (3) Demurrer of Real Parties in Interest, Lawry's Restaurants, Inc. dba Five Crowns Restaurant, and Ryan O. Wilson (collectively, Real Parties).</p> <p><b><u>MOTION 1: State Defendants' Demurrer (ROA 79)</u></b></p> <p><b><u>First Cause of Action for Writ of Mandate</u></b></p> <p>"A writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station...." (Code Civ. Proc., § 1085(a).)</p> <p>"[M]andate will lie to compel the performance of a clear, present and ministerial duty on the part of the respondent where the petitioner has a beneficial right to performance of that duty." (<i>Coachella Valley Unified School Dist. v. State of Cal.</i> (2009) 176 Cal.App.4th 93, 113.) "A ministerial act is one that a public functionary is required to perform in a prescribed manner in obedience to the mandate of legal authority, without regard to his or her own judgment or opinion concerning the propriety of such act. (<i>Ibid.</i>, internal quotations omitted.)</p> <p>"Traditional mandamus will not lie to control the discretion of a public official or agency; that is, to force the exercise of discretion in a particular manner." (<i>Gordon v. Horsley</i> (2001) 86 Cal.App.4th 336, 350-351.)</p> <p>The State Defendants are correct that Petitioners fail to allege a ministerial duty that was required to be performed by the State Defendants.</p> <p>The FAP alleges the State Defendants "have a clear duty under Business &amp; Professions Code, §§24200(a)-(b) to investigate and discipline when a licensee operates in violation of law or contrary to public welfare..." (FAP ¶ 79.) The FAP alleges the State Defendants' "refusal to investigate or impose discipline on Five Crowns despite Petitioners' detailed complaints and evidence constitutes [the State] Defendants' failure to perform a mandatory duty." (FAP ¶ 80.) In</p> |

the Opposition, Petitioners also rely on Business & Professions Code section 25601.

These statutes do not require the State Defendants to perform any specific act in any prescribed manner. Rather, these statutes set forth grounds by which the State Defendants are authorized to suspend or revoke an alcohol license. Petitioners have not shown that these statutes *require* the State Defendants to investigate or discipline a licensee or otherwise perform any clear, present and ministerial duty.

Petitioners cite *Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442–443 and *Morris v. Harper* (2001) 94 Cal.App.4th 52, 63, for the proposition that mandate may compel an agency to exercise discretion when the law requires action and to proceed under a proper interpretation of the governing statutes. In *Common, supra*, the California Supreme Court held the relevant statutory scheme did not require the agency to act in the particular manner sought. *Common* therefore does not help Petitioners in this instance. *Morris* is distinguishable because in that matter the relevant statutes contained clear requirements for the operation of correctional treatment centers. (*Morris, supra*, at p. 56, 63.) Here, the governing statutes do not contain any requirement mandating the State Defendants to suspend or revoke licenses under any prescribed set of circumstances or to investigate particular violations. Petitioners failed to allege a clear ministerial duty that was required to be performed by the State Defendants to support the first cause of action.

Based on the foregoing, the State Defendants' demurrer to the first cause of action is **SUSTAINED with 20 days leave to amend**.

#### **Individual State Defendants**

The State Defendants failed to show dismissal of Agent Gonzalez and Agent Delarosa is proper. Agent Gonzalez and Agent Delarosa are named in their official capacities. The State Defendants cite no authority mandating dismissal of these individual defendants.

The demurrer on this ground is **OVERRULED**.

#### **Second Cause of Action for Injunctive Relief**

Petitioners concede an injunction is a remedy and not an independent cause of action. (See Opp. at p. 8:12-13.) Further, the FAP does not appear to seek any injunctive relief against the State Defendants.

The State Defendants' demurrer to the second cause of action is **SUSTAINED with 20 days leave to amend**.

The State Defendants shall give notice of this ruling.

#### **MOTION 2: The City's Demurrer (ROA 99)**

### **Defendant City of Newport Beach Code Enforcement**

The City has not shown dismissal of defendant City of Newport Beach Code Enforcement is warranted. The City's own cited authority, *Sheehan v. Board of Police Commissioners* (1922) 188 Cal. 525, 532, disapproved on other grounds in *Mass v. Board of Ed. of San Francisco* (1964) 61 Cal.2d 612, recognized an exception to the general rule that an entity with no separate existence is incapable of being sued. As Petitioners point out, the court in *Sheehan* expressly excepted proceedings in which the entity "may be required as an official body by mandamus to perform its official duties, or [where] its official action may be compelled or enjoined in some other special proceeding." (Id. at 532.)

The demurrer on this ground is **OVERRULED**.

### **Second Cause of Action for Injunctive Relief**

Injunctive relief is a remedy, not a cause of action. (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 572, fn 1.)

The demurrer to the second cause of action is **SUSTAINED with 20 days leave to amend**.

### **Governmental Immunities**

The City contends the entire FAP is barred as against the City based on multiple statutory immunities. (See Govt. Code, §§ 820.2, 815.2(b), 818.2, 821, 818.6, 821.4, 818.4, and 821.2.)

The City's demurrer on immunity grounds is directed to the entire FAP (see Notice of Motion, p. 1:23-2:7), which means if any cause of action is valid, the demurrer on this ground must be overruled. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 29, 36 [reversing dismissal on demurrer as to entire complaint because some claims stated a cause of action].)

Government Code section 814 provides that "[n]othing in this part affects liability based on contract or the right to obtain relief other than money or damages against a public entity or public employee." (Govt. Code, § 814; see also, *City of Dinuba v. County of Tulare* (2007) 41 Cal.4th 859, 867 ["[T]he immunity provisions of the [Government Claims] Act are only concerned with shielding public entities from having to pay money damages for torts."].) Here, while the prayer for relief in the FAP indicates Petitioners seek restitution for their "monitoring/enforcement costs and other out-of-pocket losses," the FAP also seeks writ relief to compel performance of a duty or to enjoin certain conduct. Thus, to the extent the causes of action seek a writ of mandate, the governmental immunities cited by the City do not appear to apply. Moreover, Petitioners indicate in the Opposition they withdraw the request for monitoring expenses and restitution in the FAP.

In the Reply, the City cites *Schooler v. State of California* (2000) 85 Cal.App.4th 1004, to support its contention the immunities apply

here. That matter, however, did not involve an action for writ of mandate. It is thus not shown at this stage that the immunities cited by the City apply to the entire FAP.

The demurrer on immunity grounds is **OVERRULED**.

#### **Fourth, Fifth, and Sixth Causes of Action**

As the City contends, the fourth, fifth, and sixth causes of action essentially allege selective enforcement of Newport Beach Municipal Code (NBMC) ordinances by the City. (See FAP ¶¶ 96-108.) A claim of "selective enforcement" is fundamentally an equal protection challenge. (*Baluyut v. Superior Court* (1996) 12 Cal.4th 826, 831.) To state a violation of equal protection, a complaint must allege "facts from which it might be concluded the asserted unequal treatment was the result of intentional discriminatory conduct, as opposed to mere laxity of enforcement." (*Golden Gate Water Ski Club v. County of Contra Costa* (2008) 165 Cal.App.4th 249, 268.) Here, the FAP fails to allege facts sufficient to show disparate treatment of Petitioners that was the result of "intentional discriminatory conduct, as opposed to mere laxity of enforcement."

The demurrer to the fourth, fifth, and sixth causes of action is **SUSTAINED with 20 days leave to amend**.

#### **Seventh, Eighth, and Ninth Causes of Action**

The City is correct that the seventh, eighth, and ninth causes of action improperly seek to control the City's exercise of discretion. These causes of action appear to essentially seek a writ directing how the City should process Real Parties' Use Permit Amendment application, PA2025-0208, and how the City should enforce its ordinances. (See FAP ¶¶ 119, 122, 128, 130-131, 133.) "Traditional mandamus will not lie to control the discretion of a public official or agency; that is, to force the exercise of discretion in a particular manner." (*Gordon v. Horsley* (2001) 86 Cal.App.4th 336, 350-351.)

In the Opposition, Petitioners argue the gravamen of the FAP is that the City has refused to perform mandatory duties and has failed to exercise its enforcement authority under the correct legal standards. But Petitioners do not dispute that the FAP seeks to compel the City to undertake specific actions in connection with their processing of Real Parties' new use permit application, including for instance, compelling the City to exclude certain information from consideration. (See, e.g., FAP ¶ 128.) The FAP thus appears to seek mandamus to control the exercise of the City's discretion, which is improper.

The seventh, eighth, and ninth causes of action also appear unripe as the FAP shows no decision on Real Parties' Use Permit Amendment application PA2025-0208 has yet been made. "A controversy is 'ripe' when it has reached, but has not passed, the point that the facts have sufficiently congealed to permit an intelligent and useful decision to be made." (*Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal.3d 158, 171; internal

quotations omitted.) Petitioners state they do not seek judicial review of a final approval or denial that has not yet occurred but are challenging the City's present treatment of the application. Petitioners, however, concede that processing of an application is not itself actionable. (See Opp. at p. 8:22.)

Based on the foregoing, the City's demurrer to the seventh, eighth, and ninth causes of action on the above grounds is **SUSTAINED with 20 days leave to amend.**

The City's request for judicial notice is **GRANTED.** (Evid. Code, § 452(b).)

The City shall give notice of this ruling.

### **MOTION 3: Real Parties' Demurrer (ROA 95)**

#### **First, Seventh, Eighth, and Ninth Causes of Action**

Real Parties contend the mandamus causes of action fail because they impermissibly seek to have the Court direct the City's discretionary decisions. The argument is well-taken. Petitioners appear to be seeking an order directing what the City can and cannot consider in the enforcement of its noise ordinances and in its evaluation of Real Parties' Use Permit Amendment application. (See FAP ¶¶ 76, 119, 122, 128, 130-131, 133, Prayer for Relief, ¶ A1.) As such, Real Parties are correct that the mandamus causes of action improperly seek to control the exercise of the City's discretion. (*Gordon v. Horsley* (2001) 86 Cal.App.4th 336, 350-351.)

Real Parties' demurrer to the first, seventh, eighth, and ninth causes of action on the above grounds is **SUSTAINED with 20 days leave to amend.**

#### **Second Cause of Action for Injunctive Relief**

Injunctive relief is a remedy, not a cause of action. (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 572, fn 1.)

The demurrer to the second cause of action is **SUSTAINED with 20 days leave to amend.**

#### **Third Cause of Action for Declaratory Relief**

Real Parties contend no controversy is identified to support the claim for declaratory relief. The argument lacks merit as the FAP alleges "[a]n actual controversy exists as to whether Petitioners' Class 1 Svantek system measurements are valid evidence of NBMC ordinance compliance/violation under the CITY's Noise Element and adopted standards." (FAP ¶ 94.) Real Parties contend this is "obviously" not a proper subject of declaratory relief, but they cite no authority establishing this is so.

The demurrer to the third cause of action is **OVERRULED.**

#### **Fourth Cause of Action for Violation of Due Process**

"The concept of 'due process of law' guarantees both procedural and substantive rights." (*Bottini v. City of San Diego* (2018) 27 Cal.App.5th 281, 315, citing *Rental Housing Owners Assn. of Southern Alameda County, Inc. v. City of Hayward* (2011) 200 Cal.App.4th 81, 93 (*Hayward*).)

As to substantive due process, Real Parties contend the request that City code enforcement personnel enter or access Petitioners' property at 352 Hazel Drive to conduct official noise measurements "is, on its face, a rational and ordinary means of verifying alleged noise violations..." (Motion at p. 12:23-25.) Real Parties also contend summarily in the Reply that the remaining allegations of the cause of action are insufficient to establish a due process violation.

Real Parties fail to adequately explain, or cite authority showing, how the allegations in the FAP cannot support a substantive due process claim. Real Parties simply urge the Court to adopt their characterization of the facts alleged. Real Parties failed to show the substantive due process claim fails to state a cause of action.

The Court does not reach Real Parties' argument pertaining to procedural due process. "Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled." (*Elder v. Pacific Bell Telephone Co.* (2012) 205 Cal.App.4th 841, 856 fn 14.)

The demurrer to the fourth cause of action is **OVERRULED**.

#### **Fifth Cause of Action for Violation of Equal Protection**

To state a claim for violation of equal protection, a plaintiff must plead that (1) the plaintiff was treated differently from other similarly situated persons, (2) the difference in treatment was intentional, and (3) there was no rational basis for the difference in treatment. (*Bottini v. City of San Diego* (2018) 27 Cal.App.5th 281, 317.)

Real Parties contend Petitioners fail to allege they are similarly situated as required for their equal protection claim because, according to Real Parties, commercial operators and residents are not similarly situated. Real Parties, however, cite no authority establishing that commercial operators and nearby residents cannot be considered similarly situated for purposes of an equal protection claim under the circumstances of the instant case. The authorities cited by Real Parties involve different factual scenarios. (See *Murphy v. Pierce*, 1 Cal.App.4th 690, 694-95 (1991); *Town of Los Altos Hills v. Adobe Creek Props., Inc.*, 32 Cal.App.3d 488, 510-18 (1973).)

Real Parties' argument in the Reply that the allegations fail to establish disparate treatment is new argument submitted with the Reply which the Court declines to consider. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38.)

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|    |                                      | <p>The demurrer to the fifth cause of action is <b>OVERRULED</b>.</p> <p><b><u>Sixth Cause of Action for Retaliation</u></b></p> <p>Real Parties contend retaliation is not a recognized independent cause of action under California Constitution Article I, §2. Petitioners do not dispute retaliation is not an independent cause of action. To the extent Petitioners sought to assert a claim for violation of California Constitution Article I, §2, the FAP does not clearly state such claim.</p> <p>The demurrer to the sixth cause of action is <b>SUSTAINED with 20 days leave to amend</b>.</p> <p>Real Parties' request for judicial notice as to Exhibits 1-3 is <b>DENIED</b>. (<i>Center for Community Action &amp; Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].)</p> <p>Real Parties' request for judicial notice as to Exhibits 4 and 5 is <b>GRANTED</b>. (Evid. Code, § 452(b).)</p> <p>Real Parties shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 13 | Catanzarite v. City of Newport Beach | <p>Before the Court are the following motions: (1) demurrer of respondents City of Newport Beach and City Council of the City of Newport Beach (collectively, City) directed to the verified petition for writ of mandate and for writ of administrative mandamus (Petition) filed by petitioners Kenneth J. Catanzarite and Kim E. Catanzarite (collectively, Petitioners); and (2) demurrer of real parties in interest FPV II Partnership, Lawry's Restaurants, Inc., and Ryan O. Wilson (collectively, Real Parties) directed to the Petition. For the reasons set forth below, the demurrers are <b>OVERRULED</b>.</p> <p>The City and Real Parties are ordered to file their answers to the Petition within 20 days.</p> <p><b><u>City's Demurrer (ROA 58)</u></b></p> <p>The City argues the Petition is moot because the limited term permit (LTP) at issue in this lawsuit was voluntarily surrendered by Real Parties, and the City accepted that surrender effective December 10, 2025.</p> <p>"A case is considered moot when the question addressed was at one time a live issue in the case but has been deprived of life because of events occurring after the judicial process was initiated. The pivotal question in determining if a case is moot is therefore whether the court can grant the plaintiff any effectual relief." (<i>Cohen v. Superior Court</i> (2024) 102 Cal.App.5th 706, 714 [internal citations and quotations omitted]; see also, <i>Lincoln Place Tenants Assn. v. City of Los Angeles</i> (2007) 155 Cal.App.4th 425, 454 ["[A] case becomes moot when a court ruling can have no practical effect or cannot provide the parties with effective relief."].)</p> |

Although it is undisputed the LTP has been surrendered, there is nothing presented showing that Resolution No. 2025-18, by which the City approved Real Parties' LTP application, has been rescinded or that the findings therein no longer have any force or effect. The Petition here seeks issuance of a writ of mandate directing the City to not only vacate the decision granting Real Parties the LTP, but to vacate and set aside Resolution No. 2025-18. (See Petition, Prayer for Relief, ¶¶ 1, 3.) As Petitioners point out, Resolution No. 2025-18 sets forth numerous findings and determinations regarding the outdoor dining area of the Five Crowns restaurant and its impacts on surrounding neighborhoods. (See Petition, Ex. 6.) The City has not shown how surrender of the LTP renders these findings and determinations a nullity or that these findings cannot be used in later proceedings involving the same parties and properties at issue. The City simply states summarily that the findings set forth in Resolution 2025-18 are irrelevant now that the LTP has been surrendered. But no authority or evidence is offered to support this contention.

The City also fails to sufficiently show how considering the merits of the Petition as it relates to Resolution No. 2025-18 is tantamount to issuing an advisory opinion on a different administrative proceeding. The Court would not be making a ruling or findings concerning any separate administrative proceeding. The Court would be issuing an order as to whether the City acted within its discretion in adopting Resolution No. 2025-18.

The authorities cited by the City in the reply are distinguishable and do not support the conclusion these proceedings are moot. (See *Sturgell v. Department of Fish & Wildlife* (2019) 43 Cal.App.5th 35; *Goldman v. Santa Barbara County* (1962) 203 Cal.App.2d 454.) The City has cited no authority addressing the issue of whether surrender of a land use permit renders a mandamus proceeding directed to both the permit and a related resolution moot.

The City has not shown that all of the relief sought in the Petition is mooted by the surrender of the LTP as the City failed to show that vacatur of Resolution No. 2025-18 would have no legal or practical effect. Even if some of the relief sought is no longer available, this would not support sustaining the demurrer. "Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled." (*Elder v. Pacific Bell Telephone Co.* (2012) 205 Cal.App.4th 841, 856 fn 14.)

Moreover, even if the surrender of the LTP rendered this case moot, the Court has discretion to consider the merits because the parties' dispute over Five Crowns' outdoor operations is likely to recur. When there may be a recurrence of the controversy between the parties, the court may exercise its discretion to decide the merits. (*Environmental Charter High School v. Centinela Valley Union High School Dist.* (2004) 122 Cal.App.4th 139, 144 [discussing three discretionary exceptions to the rules regarding mootness].) The City concedes in its reply that Real Parties have sought a conditional use

permit for their property which application is currently pending. (See Reply at p. 4:8-13.) As such, the controversy between the parties concerning the subject property and its outdoor operations is likely to recur.

Based on the foregoing, the demurrer is **OVERRULED**.

The City's request for judicial notice is **GRANTED**. (Evid. Code § 452(d).)

### **Real Parties' Demurrer (ROA 61)**

**Mootness:** Like the City, Real Parties contend the Petition is moot because the LTP has been voluntarily relinquished and is no longer in effect, and therefore the Court cannot grant Petitioners any effective relief in connection with the Petition. Real Parties raise essentially the same arguments as the City and cite to the same authorities pertaining to mootness, with the exception of *Long v. Hultberg* (1972) 27 Cal.App.3d 606, which was not cited by the City. *Long*, however, involves a different factual scenario and is thus distinguishable.

Accordingly, Real Parties' demurrer based on mootness fails for the same reasons the City's demurrer based on mootness fails. The demurrer on this ground is therefore **OVERRULED**.

**Due Process:** In addition to mootness, Real Parties argue Petitioners failed to plead a procedural or substantive due process violation. Petitioners allege denial of procedural and substantive due process in connection with the third cause of action.

"The concept of 'due process of law' guarantees both procedural and substantive rights." (*Bottini v. City of San Diego* (2018) 27 Cal.App.5th 281, 315, citing *Rental Housing Owners Assn. of Southern Alameda County, Inc. v. City of Hayward* (2011) 200 Cal.App.4th 81, 93 (*Hayward*).) The foundational requirements of procedural due process include notice and an opportunity to be heard before depriving a party of a protected liberty or property interest. (*Ibid.*, citing *Alviso v. Sonoma County Sheriff's Dept.* (2010) 186 Cal.App.4th 198, 209.) Substantive due process protects against "arbitrary legislative action." (*Bottini*, supra, 27 Cal.App.5th at 315, citing *Hayward*, supra, 200 Cal.App.4th at 93.)

As to substantive due process, Real Parties argue summarily that Petitioners' allegations concerning "unspecified ex parte communications" do not rise to the level of an arbitrary legislative action. However, the due process claim is not based solely on allegations that the City engaged in ex parte communications with Real Parties. The Petition also alleges that the City violated Petitioners' due process rights by "failing to give due consideration to any of the evidence PETITIONERS presented" and "by predetermining the matter, failing to seriously consider or deliberate on the matter, all of which gave FIVE CROWNS an unfair and improper advantage over PETITIONERS in the proceedings, and rendered the public proceedings a sham." (Petition, ¶ 100.) The

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|    |                                               | <p>Petition also alleges the City materially altered Real Parties' permit application contrary to the Notice of Hearing and after public comment closed. (Petition, ¶¶ 64-67.) Real Parties fail to explain, or cite evidence demonstrating, how the foregoing allegations cannot support a substantive due process claim. The demurrer on this ground is thus not well-taken.</p> <p>Because the substantive due process claim remains viable, the court need not reach Real Parties' argument pertaining to procedural due process. (See <i>Elder v. Pacific Bell Telephone Co.</i> (2012) 205 Cal.App.4th 841, 856 fn 14 [general demurrer does not lie as to a portion of a cause of action].)</p> <p>The demurrer directed to the due process claim is thus <b>OVERRULED.</b></p> <p>Real Parties' request for judicial notice as to Exhibit 1 is <b>GRANTED</b> as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.)</p> <p>Real Parties' request for judicial notice as to Exhibits 2 and 3 is <b>DENIED</b> as the records are not relevant to the disposition of the motion. (<i>Center for Community Action &amp; Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].)</p> <p>Counsel for Petitioners shall give notice of these rulings.</p> |
| 14 | Cornejo vs. Schoolsfirst Federal Credit Union | <p>Defendant Safeco Insurance Company of America's ("Defendant") motion for summary judgment. or in the alternative, summary adjudication, is <b>GRANTED in part and DENIED in part.</b></p> <p>Granted as to causes of action ("COA") nos. 3, 4, and 6,</p> <p>Denied as to COA nos. 1, 2, and 7, and punitive damages.</p> <p><b><u>COA No. 1 – Breach of Contract</u></b></p> <p>The elements for breach of contract are: (1) parties capable of contracting, (2) mutual consent, (3) a lawful object, (4) sufficient cause or consideration, (5) plaintiff's performance or excuse for failure to perform, (6) defendant's breach, and (7) damage. (Civil Code §§ 1550, 1605; <i>Stockton Mortgage, Inc. v. Tope</i> (2014) 233 Cal.App.4th 437, 453; <i>Gomez v. Lincare, Inc.</i> (2009) 173 Cal.App.4th 508, 525.)</p> <p>"A contract is extinguished by its rescission." (Civ. Code § 1688.) "[U]pon a rescission of a policy of insurance, based upon a material concealment or misrepresentation, all rights of the insured thereunder (except the right to recover any consideration paid in the purchase of the policy) are extinguished. . ." (<i>Imperial Cas. &amp;</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                          |

*Indem. Co. v. Sogomonian* (1988) 198 Cal. App. 3d 169, 184.) A party to a contract may rescind the contract if consent to the contract was obtained through fraud. (Civ. Code § 1689.) “[U]nder the present interpretation of the Insurance Code, an insurer may rescind the contract of insurance ab initio for a material misrepresentation—even though the insured's misstatements were the result of negligence or, indeed, the product of innocence.” (*Barrera v. State Farm Mut. Automobile Ins. Co.* (1969) 71 Cal.2d 659, 666, fn. 4.)

As noted above, for rescission the misstatements of fact must be material.

“The materiality of a misrepresentation is determined by its probable and reasonable effect upon the insurer. (Ins.Code, § 334.) The misrepresentation need not relate to the loss ultimately claimed by the insured. [Citation.] The test for materiality is whether the information would have caused the underwriter to reject the application, charge a higher premium, or amend the policy terms, had the underwriter known the true facts. (*Old Line Life Ins. Co. v. Superior Court* (1991) 229 Cal.App.3d 1600, 1604, 281 Cal.Rptr. 15 [“ ‘The most generally accepted test of materiality is whether or not the matter misstated could reasonably be considered material in affecting the insurer's decision as to whether or not to enter into the contract, in estimating the degree or character of the risk, or in fixing the premium rate thereon ’ [Citations.]”]; *Holz Rubber Co., Inc. v. American Star Ins. Co.* (1975) 14 Cal.3d 45, 61, 120 Cal.Rptr. 415, 533 P.2d 1055 [“Materiality is determined by the probable and reasonable effect that truthful disclosure would have had upon the insurer in determining the advantages of the proposed contract. [Citations.] Essentially, we must decide whether the insurer was misled into accepting the risk or fixing the premium of insurance. [Citations.]”].) “This is a *subjective* test; the critical question is the effect truthful answers would have had on [the insurer], not on some ‘average reasonable’ insurer [Citations].

*Mitchell v. United Nat'l Ins. Co.* (2005) 127 Cal.App.4th 457, 474.

Defendant produced evidence that plaintiff Blanca Cornejo’s (“Plaintiff”) application for the subject insurance policy (“Policy”) contained misstatements or omissions regarding prior insurance policies on the property being cancelled. “California Insurance Code section 332 provides that each party to a contract of insurance must communicate to the other, in good faith, all facts within his knowledge which are, or to which he believes to be, material to the contract. As such, a material misrepresentation or concealment in an insurance application, whether intentional or unintentional, entitles the insurer to rescind the insurance policy ab initio. [Citation]; Cal. Insur. Code § 331. California Insurance Code section 330 defines “concealment” as “[n]eglect to communicate that which

a party knows, and ought to communicate.” Section 359 of the California Insurance Code expressly authorizes rescission of a policy where “a representation is false in a material point, whether affirmative or promissory,....” ( *Admiral Ins. Co. v. Debber*, 442 F. Supp. 2d 958, 966 (E.D. Cal. 2006).) “To establish that a misrepresentation or concealment on an insurance application is material, the insurer need not prove an actual intent to deceive; an unintentional but material misrepresentation or concealment is sufficient.” ( *Ibid.*) “Finally, an insurer has the right to rely on the insured's answers to the questions in the insurance application without verifying their accuracy.” ( *Id.*, at 967.)

Defendant has also shown that defendant SchoolsFirst Federal Credit Union (“Bank”) was Plaintiff’s agent for purposes of the Policy. ( *Mercury Ins. Co. v. Pearson* (2008) 169 Cal. App. 4th 1064, 1073 (“ *Mercury*”).) “As a matter of law, “if [an insurance] application was prepared by an insurance broker (the agent of the insured), the application's contents are the insured's responsibility.” ( *LA Sound USA, Inc. v. St. Paul Fire & Marine Ins. Co.* (2007) 156 Cal. App. 4th 1259, 1268.) Regardless of whether the misrepresentations in the application were made by Plaintiff or Bank, the fact that they were material and existed is the responsibility of Plaintiff by law. Plaintiff Docusigned the application which contained the purported errors instead of notifying Bank or Defendant. The misrepresentations in the application are therefore the responsibility of Plaintiff either on her own or through her agents at Bank.

But a triable issue of fact exists as to waiver. The peculiar facts of this case demonstrate that Defendant issued a Landlord Protection policy no. OA5077019 on 08/15/22, which was cancelled three days later due to “the residency and condition,” with coverage ending 10/20/22. (Fournier Decl. ¶ 5(c).) The inspection report identified that the Property was vacant, had a broken window, and curled splitting roof shingles. (Fix Decl. ¶ 9, Ex. 9.) The electric meter had also been removed.

Despite its prior cancellation, Defendant issued a second Landlord Protection Policy, No. OA5096864 for the Property on 10/07/22. (Fournier Decl. ¶ 2, Ex. 1.) In its opposition, Defendant relies on the fact that three policies had been cancelled in the past year as a basis for rescission; but the truth is that even one prior cancellation would have disqualified the property from coverage under Defendant’s underwriting guidelines.

For example, in his declaration, Temple Fournier testifies:

“Based on my training, experience, and familiarity with Safeco’s written underwriting guidelines for the Landlord Protection Program, the prior-cancellation question is material to determining whether an applicant meets Safeco’s eligibility requirements. A history of prior property insurance cancellations within the preceding five years is a disqualifying factor.”

More to the point, Defendant's Exhibit 4, which are Defendant's own claim notes, indicates that even its own prior cancellation alone would have disqualified the property from coverage:

"Spoke to Denise. . . . She advised that their procedure is to review the application questions with the Insured. Their procedure is to ask if their property insurance has been canceled, declined or non-renewed in the last five years. If the answer were checked, the Safeco System would have declined it. I asked if she knew the Insured had a prior policy with Safeco that was canceled on 9/2022, would they have accepted the risk, and she said the Safeco system would have rejected it."

Exh. 4, pp. 7-8 (Emphasis added).

"An insurer has the right to rescind a policy when the insured has misrepresented or concealed material information in seeking to obtain insurance. [Citations.] That right, like any other, can be waived. "An insurance company will be deemed to waive any ground which would otherwise entitle it to rescind a policy or treat it as forfeited when, despite knowledge of the facts giving it the option, it impliedly recognizes the continuing effect of the policy." [Citations.] " 'When an insurance company, with full knowledge of all the facts, enters into negotiations and relations with the assured, recognizing the continued validity of the policy, the right to a forfeiture for any previous default which may be asserted is waived. [Citations.]' ".) This test for waiver in the context of insurance contracts comports with the general rule for finding a waiver: " 'In general, to constitute a waiver, there must be an existing right, a knowledge of its existence, [and] . . . conduct so inconsistent with the intent to enforce the right as to induce a reasonable belief that it has been relinquished.' " [Citations.] " 'The party who has the right may waive it without reliance by another.' "

*DuBeck v. California Physicians' Serv.* (2015) 234 Cal.App.4th 1254, 1264–65. Here, there can be little argument that Defendant was aware of its own cancellation and the reasons therefore, given it was Defendant's personnel who issued the cancellation. And as noted above, it is undisputed that Defendant's single cancellation alone was grounds for denial. But Defendant accepted the risk despite its knowledge of the cancellation and the reasons therefore. By accepting premium payments, Defendant created a reasonable belief in the insured that any loss under the policy would be covered.

The triable issue is whether the fact that Defendant did not know of the two additional previous cancellations by other insurers would have been material to its decision, or whether it is simply as a convenient excuse to rescind the policy after a loss. True, materiality often may be determined as a matter of law. But here, Defendant's issuance of a policy with knowledge that the answer to

the question on prior cancellations was false makes the issue of materiality one for the jury.

The motion is **DENIED** as to this COA.

### **COA No. 2 – Breach of Implied Covenant of Good Faith**

"Only one with the right to sue an insurance company for contract damages for breach of the insurance policy can also sue the insurance company for tort damages for breach of the covenant of good faith." (*Wexler v. California FAIR Plan Assn.* (2021) 63 Cal. App. 5th 55, 62.) As the question whether Defendant waived its right to rescind involves a triable issue of fact, summary adjudication of this COA cannot be granted.

The motion is **DENIED** as to this COA.

### **COA No. 3 – Negligence**

"The elements of a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.' " (*Ladd v. Cty. of San Mateo* (1996) 12 Cal. 4th 913, 917.) "[T]he existence of a duty is a question of law for the court." (*Kentucky Fried Chicken of Cal., Inc. v. Superior Court* (1997) 14 Cal. 4th 814, 819.)

Negligence is not among the theories of recovery generally available against insurers." (*Sanchez v. Lindsey Morden Claims Servs., Inc.* (1999) 72 Cal. App. 4th 249, 254.) "[A]n insurer has the right to rely on the insured's answers to questions in the insurance application without verifying their accuracy." (*Mitchell v. United Nat'l Ins. Co.* (2005) 127 Cal. App. 4th 457, 477 ("*Mitchell*").)

The complaint alleged Defendant owed Plaintiff a duty to carefully review, issue, and enforce the policy. (Complaint ¶ 47.) Defendant allegedly breached that duty by failing to verify the accuracy of the information on the application and issuing a policy based upon incorrect data. (Complaint ¶ 50.) Further, Defendant accepted Plaintiff's premium payments despite knowledge or constructive knowledge of inaccuracies on the application.

As discussed above, Bank was Plaintiff's agent. (*Mercury, supra*, 169 Cal. App. 4th at 1073.) There was, "a duty on the part of the insured to read the contract and the application in accordance with her representations and to report to the company any misrepresentations or omissions. There is no showing in the present case that the failure to read the application was due to any act of the defendant and under the decisions the facts herein do not make an exception so as to excuse the insured's failure to read it. By neglecting to inform the company of the material omissions, the insured became responsible for such misrepresentations or omissions." (*Telford v. New York Life Ins. Co.* (1937) 9 Cal. 2d 103, 107 ("*Telford*").)

Defendant did not owe a duty to verify the accuracy of the application, while Plaintiff and its agent Bank did owe a duty to verify the application and notify Defendant of any errors. The deposition testimony of Bank's PMK that an agency agreement between Bank and Defendant exists, which the deponent had never reviewed, does not support a triable issue of material fact as to Bank being an agent of Defendant. As no duty owed on the part of Defendant was identified or any breach thereof, Plaintiff has not met the transferred burden.

The motion is **GRANTED** as to this COA.

#### **COA No. 4 – Negligence Misrepresentation**

"The elements of a negligent misrepresentation are '(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.' [Citation.] Negligent misrepresentation does not require knowledge of falsity ...." (*Borman v. Brown* (2021) 59 Cal. App. 5th 1048, 1060.) Intent to defraud is not a required element under this cause of action. (*Id.*, at 1060-61.) " 'Where the defendant makes false statements, honestly believing that they are true, but without reasonable ground for such belief, he may be liable for negligent misrepresentation, a form of deceit.' [Citations.]" [Citation.] Whether a defendant had reasonable ground for believing his or her false statement to be true is ordinarily a question of fact." (*Quality Wash Grp. V, Ltd. v. Hallak* (1996) 50 Cal. App. 4th 1687, 1696.)

Plaintiff again alleged Defendant had a duty to exercise reasonable care and competence in obtaining, verifying, and communicating accurate information in the application. (Complaint ¶¶ 55, 57.) Defendant's previous relationship with Plaintiff and its knowledge of Policy 1 being revoked represented to Plaintiff the application was acceptable and suitable for Policy 2. (Complaint ¶ 60.) The representation was false as evidence by Defendant's denial that the application was inaccurate despite knowing Plaintiff's policy history. (Complaint ¶ 62.) Defendants had no reasonable ground to believe the statements were accurate. (Complaint ¶¶ 63-64.) Plaintiff reasonably relied on the representations the application was sufficient and that a valid policy had been issued. (Complaint ¶ 65.) As a result of the representation, Plaintiff suffered damages by the denial of coverage for the fire claim. (Complaint ¶ 66.)

As noted above, Defendant had no duty to verify the application, but rather it was Plaintiff who had the duty to review the application and notify Defendant of inaccuracies. (*Mitchell, supra*, 127 Cal. App. 4th at 477; *Telford, supra*, 9 Cal. 2d at 107.) It was reasonable for Defendant to rely upon the information in the application. Defendant was unaware of the inaccuracies and the basis for the rescission until it rescinded the policy in November 2023 and believed the Policy was appropriately issued based on the misrepresentations of Plaintiff and/or Bank. Even if Defendant should have known about the prior

policy is cancelled, Defendant was unaware of the Farmers' policy. Defendant has met its burden on this COA.

The motion is **GRANTED** as to this COA.

#### **COA No. 6 – Promissory Estoppel**

"The elements of a promissory estoppel claim are '(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3)[the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.' [Citation.]" (*Joffe v. City of Huntington Park* (2011) 201 Cal. App. 4th 492, 513.)

Plaintiff alleged that Defendant through its acceptance of premiums and issuance of Policy 2 represented the Property was insured. (Complaint ¶ 78.) Plaintiff relied on the representation the Property would be insured for fire. (Complaint ¶ 79.)

However, "[i]f actual consideration was given by the promisee, promissory estoppel does not apply." (*Fleet v. Bank of Am. N.A.* (2014) 229 Cal. App. 4th 1403, 1413.) However, "[a]lthough a cause of action for promissory estoppel is inconsistent with a cause of action for breach of contract based on the same facts [Citation], '[w]hen a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations.'" (*Ibid.*)

But the facts are undisputed here that the only promise Defendant made to Plaintiff was coverage under the policy, which was expressly based on actual consideration paid. If the policy is rescinded, then no promise exists and refund of the consideration paid does not ipso facto require an insurer to provide coverage.

The motion is **GRANTED** as to this COA.

#### **COA No. 7 – Unfair Business Practices**

"In contrast to its limited remedies, the unfair competition law's scope is broad. The unfair competition law's scope is broad. Unlike the Unfair Practices Act, it does not proscribe specific practices. Rather, as relevant here, it defines "unfair competition" to include "any unlawful, unfair or fraudulent business act or practice." [Citation.] Its coverage is "sweeping, embracing ' anything that can properly be called a business practice and that at the same time is forbidden by law.'" " [Citations.] It governs "anti-competitive business practices" as well as injuries to consumers, and has as a major purpose "the preservation of fair business competition." [Citations.] By proscribing "any unlawful" business practice, "section 17200 'borrows' violations of other laws and treats them as unlawful practices" that the unfair competition law makes independently actionable. [Citations.] [¶] However, the law does more than just borrow. The statutory language referring to "any unlawful, unfair or fraudulent" practice (*italics added*) makes clear

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|    |                | <p>that a practice may be deemed unfair even if not specifically proscribed by some other law. "Because Business and Professions Code section 17200 is written in the disjunctive, it establishes three varieties of unfair competition-acts or practices which are unlawful, or unfair, or fraudulent. 'In other words, a practice is prohibited as "unfair" or "deceptive" even if not "unlawful" and vice versa.'" (<i>Cel-Tech Commc'ns, Inc. v. Los Angeles Cellular Tel. Co.</i> (1999) 20 Cal. 4th 163, 180.)</p> <p>Plaintiff alleged that by denying coverage based on errors which were solely within Defendant's control, being aware of the errors, and still issuing the policy based on the misrepresentations is conduct prohibited by law. (Complaint ¶ 87.) Accepting premium payments, failing to accurately communicate and verify information, and subsequently denying coverage based on those errors are unfair practiced. (Complaint ¶ 88.) Defendant also engaged in fraudulent business practices by misrepresenting the accuracy of the application, scope of coverage, and acceptance of premiums. (Complaint ¶ 89.)</p> <p>All of Plaintiff's allegations are derivative of the other COA in the complaint and therefore must stand or fall with the claims made therein. (<i>Med. Marijuana, Inc. v. ProjectCBD.com</i> (2020) 46 Cal. App. 5th 869, 896.) As the motion was DENIED as to the COA for implied covenant of good faith and fair dealing which Plaintiff in part bases her UCL claims on (Complaint ¶ 87, 89-90), the UCL claim survives.</p> <p>The motion is <b>DENIED</b> as to this COA.</p> |
| 15 | Ibarra v. Diaz | <p>The motion to set aside default filed by defendant Elizabeth Diaz (Defendant) is <b>GRANTED</b>.</p> <p>The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473(b).)</p> <p>The law favors judgments on the merits. Thus, on a motion for relief from default, "doubts must be resolved <i>in favor of relief</i>, with an order denying relief scrutinized [on appeal] more carefully than an order granting it." (<i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 134 [emphasis in original].)</p> <p>Initially, the Court notes Defendant failed to file proof of service showing the motion was timely served on plaintiff Bertha P. Ibarra (Plaintiff). Although this defect was waived by Plaintiff opposing the motion on the merits (see <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697), Defendant is admonished to timely file proof of service for all future motions.</p> <p>This motion is timely filed within six months after default was entered against Defendant. The motion is also accompanied by a copy of the proposed answer to the complaint. (See Ex. A to</p>                                                                                                                                                                                                                                                                                                           |

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|    |                        | <p>Motion.) Defendant has shown the default was entered due to Defendant's mistake, inadvertence, surprise, or excusable neglect.</p> <p>Accordingly, the motion is <b>GRANTED</b>.</p> <p>Defendant is to file her answer to the complaint within 10 days of the date of this order.</p> <p>The clerk of the court shall give notice.</p> |
| 16 | Herda v. FAC<br>US LLC | Cont.                                                                                                                                                                                                                                                                                                                                      |
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